

# **Smt. Swati Abhishek Naik (Old ... vs Shri. Abhishek Ramesh Naik on 21 June, 2019**

**Author: K.K. Tated**

**Bench: K.K. Tated**

(13)mc

IN THE HIGH COURT OF JUDICATURE AT BOMBAY  
CIVIL APPELLATE JURISDICTION

MISC.CIVIL APPLICATION NO. 303/2018

Smt. Swati Abhishek Naik ... Appellant

V/s.

Mr.Abhishek R. Naik ... Respondent

Mr.CT Chandratre for the Applicant  
Mr. Niles M. Wable for the Respondent .

CORAM: K.K. TATED, J.

DATED : JUNE 21, 2019 P.C. :

Heard learned counsel for parties.

2. By this application, u/s 24 of Code of Civil Procedure, 1908, applicant/wife is seeking transfer of marriage petition No.694/2018 filed by respondent for divorce u/s 13(1)(ia) (ib) of Hindu Marriage Act before Family Court at Pune to Family Court at Nashik.

3. Heard learned counsel appearing on behalf of the respondent. After taking instructions from his client, he submits that they have no objection if the matter is transferred Family Court at Nashik for hearing and final disposal. He submits that in the interest of justice, this court be pleased to expedite the hearing of petition filed by him.

(13)mca-303-18.doc

4. Considering the submission made by learned advocate for applicant and as learned advocate for respondent has made a statement before this Court for allowing this application, it is not necessary to give detail reasoning for this order.

5. Hence, the following order.

a) Marriage Petition filed by respondent/husband u/s 13(1)(ia)(ib) of the Hindu Marriage Act before Family Court at Pune is transferred to Family Court at Nashik for hearing and final disposal on its own merits.

b) Hearing of marriage petition filed by respondent is expedited.

c) This court expects that Family Court at Nashik to decide the petition filed by respondent/husband as early as possible but in any case, on or before 31.3.2020.

d) Both the learned counsel made a statement that their respective clients will not ask for unnecessary adjournment.

e) Parties to act on authenticated copy of this order.

f) No order as to .

(K. K. TATED, J.)